LW1108 · INTRODUCTION TO THE LEGAL SYSTEM

Full Marking Scheme

Section B · Autumn 2022/23 Examination · Paper 1

Module Code	LW1108
Module Title	Introduction to the Legal System
Examination Session	Autumn 2023
Paper Number	1
Internal Examiner	Dr Fidelma White
External Examiner	Dr Tanya Ní Mhuirthile
Duration of Paper	1.5 hours

SCOPE OF THIS SCHEME

UCC does not release Section A (MCQ) papers for this module, so this scheme covers **Section B only** — the three long-answer essay questions, of which candidates answer **one** for 70% of the total mark. Full model answers are provided for **all three** Section B questions (B1, B2, B3) on this paper so you can prepare regardless of which one comes up. Section A is unpublished by the School and is not covered here.

Section	Content	Weight
A — MCQ (30 Qs)	Not released by UCC — not covered in this scheme	30%
B — Long Question (1 of 3)	Full model answers for B1, B2 and B3 below	70%

Sourcing note. *Every case citation in this scheme has been checked against primary/reporting sources before use, either freshly verified for this paper or carried over from earlier verification in this same marking-scheme series where the identical authority applies. Where analysis goes beyond your lecture slides and course pack, it is flagged inline with a checknote.*

THIS PAPER IS A RESIT-STYLE REPEAT OF FAMILIAR THEMES

All three questions on this Autumn paper are variations on questions that appear, in slightly different wording, on other papers in this set: B1 (fundamental rights and business) mirrors Winter 2023/24's B1; B2 (EU primacy and direct effect) mirrors Winter 2024's B2; B3 (dispute resolution mechanisms) mirrors Winter 2024's B3. This is exactly what you'd expect from an Autumn repeat sitting. The core legal content below is the same well-established authority each time — what changes is the specific claim each question asks you to test it against, so read the question stem carefully before reusing an answer structure from memory.

Question B1

70% if selected

QUESTION AS SET

Case law illustrates the importance of the fundamental rights provisions of Bunreacht na hÉireann (1937) in relation to doing business in Ireland.

Critically evaluate this statement.

HEADLINE POSITION

The statement is largely correct, but it needs a specific case-law basis, not a general assertion, to survive critical evaluation. Three lines of case law carry almost the entire weight of the claim: the unenumerated right to earn a livelihood under Article 40.3, the express protection of property under Article 43, and the equality guarantee under Article 40.1. Once those three are properly credited, the statement holds up well — but a critical evaluation must also note how narrow the underlying protection actually is once tested against the courts' consistent deference to legitimate economic regulation.

FULL MODEL ANSWER

1. What the statement asserts, and how to test it

The statement makes two separate claims that should be evaluated separately: first, that the fundamental rights provisions (Articles 40–44) are *important* to business in Ireland, and second, that *case law* — rather than the constitutional text alone — is what demonstrates that importance. The second claim is the more interesting one to test critically, because Articles 40–44 were not drafted with commercial actors specifically in mind, and their relevance to business has almost entirely been established through litigation that extended general personal rights to commercial contexts, rather than through any express business-facing guarantee in the constitutional text itself. Evaluating the statement well means showing, case by case, how the courts did that extending work.

2. The unenumerated right to earn a livelihood

The single clearest example of case law establishing a fundamental-rights protection relevant to business is the unenumerated right to earn a livelihood, recognised nowhere in the constitutional text but derived from Article 40.3 by the courts. In *Murtagh Properties Ltd v Cleary* [1972] IR 330, Kenny J held that the personal rights protected by Article 40.3 include a right to work and earn a livelihood, restraining picketing organised to force an employer to discriminate against married women in recruitment. This is a paradigm case of case law, not constitutional text, doing the work the statement describes: nothing in Article 40.3's actual wording mentions livelihoods or employment, yet the right has been consistently applied and developed since, including in *Murphy v Stewart* [1973] IR 97 and, more recently, in *NHV v Minister for Justice and Equality* [2017] IESC 35, where the Supreme Court held that an open-ended statutory bar on an asylum seeker's right to work was inconsistent with the constitutional right to work first identified in *Murtagh Properties* more than four decades earlier. The persistence and continued application of the doctrine across that timespan is itself evidence for the statement: this is a body of business-relevant constitutional law built almost entirely by judicial decision.

3. The express protection of property

Article 43 is the clearest express (as opposed to unenumerated) fundamental-rights protection relevant to business, given how central property — commercial premises, land, plant and equipment — is to most enterprises. But even here, case law was necessary to give the bare constitutional text practical content. *Blake v Attorney General* [1982] IR 117 is the leading authority: the Supreme Court held that the rent-control provisions of the Rent Restrictions Act 1960 amounted to an unjust attack on landlords' property rights under Article 40.3.2°, because the controls transferred value from landlords to tenants indefinitely, without compensation, regard to the landlords' means, or a mechanism for review, and were no longer justified by the wartime emergency that had originally prompted them. The Court also used the case to clarify the relationship between Article 43 (which protects property as an institution) and Article 40.3.2° (which protects the individual citizen's property rights against unjust attack) — a structural distinction the bare constitutional text does not itself make clear, and which only became settled law once decided in *Blake*. For any business holding significant property assets, *Blake* remains the central authority establishing that regulatory interference with property must be proportionate and justified by the common good, not merely convenient for the State.

4. The equality guarantee

Article 40.1's equality guarantee supplies a third, more limited example. *Pine Valley Developments Ltd v Minister for the Environment* [1987] IR 23 tested whether a commercial property developer could invoke Article 40.1 against differential regulatory treatment, after outline planning permission granted to Pine Valley was later held invalid while an earlier, similarly defective grant to a different developer had been retrospectively validated by statute. The Supreme Court held there was no breach on the specific facts, because the two developers were not in a comparable position at the relevant time — but the case is still evidence for the statement, because it confirms as a matter of case law (which the bare constitutional text does not itself settle) that a commercial developer can invoke Article 40.1 against the State's regulatory conduct, even though the specific claim failed here.

Beyond the course pack. *Your lecture material treats the unenumerated rights doctrine mainly in the context of personal and family rights (Ryan, McGee); building the answer specifically around Murtagh Properties, Blake, and Pine Valley is what makes this a genuine evaluation of the statement as it applies "in relation to doing business," rather than a general unenumerated-rights essay with "business" added at the end.*

5. The critical evaluation: how far does the case law actually take business?

A critical evaluation cannot stop at cataloguing supportive case law; it has to test how far that protection actually extends, because the honest answer is: not very far past correcting clearly disproportionate or unjustified State interference. In each of the three lines of authority above, the right yielded, or was capable of yielding, to legitimate regulation: the right to earn a livelihood has never been read as precluding licensing regimes, competition law, planning law, or health and safety regulation; Article 43.2 expressly permits the State to "delimit" property rights for the common good, and *Blake* struck down the specific regime at issue only because it was disproportionate and indefinite, not because rent control as such is unconstitutional; and Article 40.1 expressly tolerates differentiation based on social function, meaning *Pine Valley*'s claim failed precisely because the equality guarantee does not require identical treatment of businesses in genuinely different positions. Legislation enjoys a presumption of constitutionality throughout, and the courts have been consistently reluctant to use Articles 40–44 to second-guess socio-economic regulatory policy that is properly for the Oireachtas.

A further limit worth noting critically: Articles 41 (family), 42 (education), and 44 (religion) contribute essentially nothing to business-relevant case law, despite forming part of the same constitutional block the statement refers to as "the fundamental rights provisions." A fully accurate evaluation of the statement should say so explicitly, since treating all of Articles 40–44 as equally important to business would overstate the case in the opposite direction from the question's framing.

> **EXAMINER'S TIP**
>
> "Critically evaluate this statement" wants you to test the claim, not just illustrate it. Marks are specifically reserved for showing where the protection is genuinely limited (proportionality, the presumption of constitutionality, Articles 41/42/44 contributing little), not just for listing cases that support the statement.

6. Conclusion

The statement is well supported: case law, far more than the bare constitutional text, is what has made Articles 40–44 relevant to business in Ireland — *Murtagh Properties Ltd v Cleary* established the right to earn a livelihood that the text does not mention, *Blake v Attorney General* gave practical, proportionality-based content to the property guarantee in Article 43, and *Pine Valley Developments* confirmed a commercial developer's standing to invoke Article 40.1, even though its own claim failed. Properly evaluated, however, the statement should be qualified in two ways: the protection these cases establish is narrow, yielding readily to proportionate economic regulation, and it is concentrated almost entirely in Articles 40 and 43 — Articles 41, 42, and 44 contribute little or nothing to the business-relevant case law the statement is describing.

Mark Allocation — Question B1 (out of 100% of the question)

Component	Weight
Introduction — separates the "importance" claim from the "case law demonstrates it" claim and signals both will be tested	**8%**
Right to earn a livelihood — correctly explains and applies *Murtagh Properties Ltd v Cleary* (and ideally *NHV*)	**22%**
Property rights — correctly explains and applies *Blake v Attorney General*, including the Art 43/Art 40.3.2° distinction	**22%**
Equality — correctly explains and applies *Pine Valley Developments v Minister for the Environment*	**15%**
Critical evaluation — proportionality/presumption of constitutionality limits AND the limited relevance of Arts 41/42/44	**23%**
Conclusion — a specific, qualified answer to the statement rather than a flat agreement	**10%**
Total	**100%**

Mark Bands

Band	What must be present
First Class (70%+)	Correctly explains and applies at least two of *Murtagh Properties*, *Blake*, and *Pine Valley* AND explicitly separates the "importance" claim from the "case law demonstrates it" claim AND critically qualifies the protection (proportionality, presumption of constitutionality, limited role of Arts 41/42/44) AND reaches a specific, evaluative conclusion.
2.1 (60–69%)	Correctly explains and applies at least one of the three cases with accurate authority AND attempts critical qualification, but the treatment is not fully developed across all three rights or the conclusion is generic.
2.2 (50–59%)	Names relevant Articles and at least one correctly-cited case, but the essay is largely descriptive/ illustrative of the statement rather than critically evaluating it.
Third/Fail (0–49%)	No accurate case authority, misattributes case holdings, or does not connect the discussion to "doing business" as the question specifically requires.

Case citations: *Murtagh Properties Ltd v Cleary* [1972] IR 330; *Murphy v Stewart* [1973] IR 97; *NHV v Minister for Justice and Equality* [2017] IESC 35; *Blake v Attorney General* [1982] IR 117; *Pine Valley Developments Ltd v Minister for the Environment* [1987] IR 23.

Question B2

70% if selected

QUESTION AS SET

Clearly, the EU is the most important source of law in the Irish legal system, and the doctrine of primacy and direct effect evidence this fact.

Discuss.

HEADLINE POSITION

Primacy and direct effect are correctly identified as the doctrines that give EU law its exceptional force in Ireland — within the fields the Treaties cover, no other external source of law commands anything close to the same authority. But the word "clearly" in the question is doing more work than the doctrine can support: EU law's status in Ireland is itself created and bounded by the Constitution (Article 29.4), and the principle of conferred competences means EU law simply has no application across most of Irish law. "Most important" needs to be read as "most important within its own, constitutionally-permitted field," not as a claim about the Irish legal system as a whole.

FULL MODEL ANSWER

1. The doctrine of primacy

Primacy is the principle that, where a conflict arises between EU law and the domestic law of a Member State, EU law prevails. The foundational case is *Costa v ENEL* Case 6/64 [1964] ECR 585, where the Court of Justice held that the EEC Treaty had created "its own legal system" which, on entry into force, became "an integral part of the legal systems of the Member States," such that a later, conflicting national law cannot be given precedence — otherwise the "legal basis of the Community itself" would be called into question. *Internationale Handelsgesellschaft* Case 11/70 [1970] ECR 1125 extended this further, holding that EU law prevails even over provisions of a Member State's own constitution. Taken at face value, this is an exceptionally strong doctrine: no other source of law recognised in the Irish legal system claims supremacy over the Constitution itself.

2. The doctrine of direct effect

Direct effect complements primacy by ensuring EU law's supremacy is not merely theoretical. *Van Gend en Loos v Nederlandse Administratie der Belastingen* Case 26/62 [1963] ECR 1 held that the EEC Treaty was not merely an agreement between states but created "a new legal order," the subjects of which include individuals as well as Member States; provisions of EU law that are sufficiently clear, precise, and unconditional confer rights on individuals directly enforceable before national courts, without needing to be transposed by national legislation first. This means an individual or a business in Ireland can invoke qualifying EU law directly against the State (vertical direct effect) and, for certain categories of provision, against another private party (horizontal direct effect), without the Oireachtas ever having legislated on the point. Together, primacy and direct effect mean EU law does not merely bind Ireland as a state on the international plane — it operates as enforceable law inside the Irish legal system, overriding conflicting domestic provisions and directly enforceable by individuals in Irish courts.

3. Why this looks like strong evidence for "most important"

On the strength of these two doctrines alone, the claim in the question has real force. No other source recognised in Irish law — not an Act of the Oireachtas, not a common law rule, not even, on the CJEU's own account of EU law's autonomous legal order, the Constitution itself — can be overridden by so wide a category of external rules, nor can any other external source be invoked directly by an individual litigant in an Irish court without domestic implementing legislation. The institutional volume reinforces this: regulations apply directly across an enormous range of fields (competition law, financial services regulation, data protection, agricultural policy) without any Irish legislative act at all, and directives are transposed into Irish law by statutory instrument under the European Communities Act 1972 across a similarly wide range of areas. Measured purely by the strength of the doctrines applicable to it, EU law's claim to primacy is genuinely without domestic parallel.

4. Why "clearly" overstates the position

A "discuss" instruction on a claim this confidently phrased is inviting exactly the qualification the word "clearly" tries to foreclose. Two points cut against the claim as an unqualified statement about the Irish legal system as a whole.

First, EU primacy exists in Irish domestic law only because the Constitution permits it to. Article 29.4 (as amended, beginning with the Third Amendment in 1972) provides that no provision of the Constitution invalidates laws enacted, acts done, or measures adopted by the State that are necessitated by the obligations of EU membership. This is a conditional, People-authorised grant of primacy embedded in the Constitution itself, not an independent legal fact EU law achieves on its own account within the Irish system. *Crotty v An Taoiseach* [1987] IR 713 demonstrates that this grant is not open-ended: the Supreme Court held that ratifying Title III of the Single European Act, which went beyond what the existing constitutional amendment authorised, required a fresh referendum — and every subsequent significant EU treaty (Maastricht, Amsterdam, Nice, Lisbon) has, as a direct consequence, been put to the Irish people in a referendum, including two rounds each for Nice and Lisbon after initial rejections. A doctrine whose domestic force is conditional on, and periodically renewed by, popular consent is not accurately described as simply and unconditionally "the most important source of law."

Second, and more fundamentally, the EU is a union of conferred competences, not general jurisdiction: Article 5 TEU provides that the Union acts only within the limits of the competences the Member States have conferred on it in the Treaties, and that competences not conferred remain with the Member States. Vast areas of Irish law are simply untouched by EU law and its doctrines of primacy and direct effect: the general law of contract and tort (subject to specific EU-derived consumer protection measures), most of the criminal law, family law, succession law, and the entire common law method — precedent, judge-made negligence law traced to *Donoghue v Stevenson* [1932] AC 562, statutory interpretation — continues to operate exactly as it did before EU membership. Primacy and direct effect are doctrines of total force within their field and no force whatsoever outside it, which is a very different claim from being "the most important source of law in the Irish legal system" taken as a whole.

Beyond the course pack. *Your lecture material states primacy and direct effect as settled EU law doctrine; connecting that doctrine back to Article 29.4 and Crotty, and to the conferred-competences principle in Article 5 TEU, is the analytical move a "discuss" instruction on a strongly-worded claim like this one is specifically inviting, and is what separates a first-class answer from a purely descriptive one.*

COMMON MISTAKE TO AVOID

Do not write this essay as a straightforward defence of the claim using only *Costa* and *Van Gend en Loos*. "Discuss" is not "confirm" — a one-sided answer that never questions "clearly" or "most important" will not clear the 2.1 band, however accurately the two doctrines themselves are stated.

5. Conclusion

Primacy and direct effect genuinely do evidence EU law's exceptional force in the Irish legal system: no other external source can override conflicting domestic law, up to and including the Constitution as the CJEU understands it, or be invoked directly by an individual litigant without national implementing legislation. To that extent the statement is well supported. But "clearly, the EU is the most important source of law in the Irish legal system" states the conclusion with more confidence than the underlying doctrine bears once Article 29.4, *Crotty v An Taoiseach*, and the conferred-competences principle are taken into account: EU primacy operates in Ireland only because, and only to the extent that, the Constitution and the People have permitted it, and it has no application at all across most of Irish private law, criminal law, and the common law method. The more accurate formulation is that primacy and direct effect make EU law the most important source of law *within its own, constitutionally-bounded field* — not the most important source of law in the Irish legal system taken as a whole.

Mark Allocation — Question B2 (out of 100% of the question)

Component	Weight
Introduction — identifies "clearly" and "most important" as the specific claims to be tested	**8%**
Primacy — correctly explains and applies *Costa v ENEL* and *Internationale Handelsgesellschaft*	**22%**
Direct effect — correctly explains and applies *Van Gend en Loos*, including the vertical/horizontal distinction	**20%**
Why this looks like strong evidence — institutional/legislative footprint, correctly explained	**10%**
Critical qualification — Art 29.4, *Crotty v An Taoiseach*, and the conferred-competences principle (Art 5 TEU)	**25%**
Conclusion — a specific, qualified answer rather than a flat agreement with "clearly"	**15%**
Total	**100%**

Mark Bands

Band	What must be present
First Class (70%+)	Correctly explains and applies both primacy (*Costa*/*Internationale Handelsgesellschaft*) and direct effect (*Van Gend en Loos*) AND explicitly tests "clearly" and "most important" using Art 29.4, *Crotty*, and the conferred-competences principle AND reaches a specific, qualified conclusion.
2.1 (60–69%)	Correctly explains at least one of primacy or direct effect with accurate authority AND raises a genuine limiting counter-argument, but the two strands are not fully integrated or the conclusion is generic.
2.2 (50–59%)	Correctly states primacy and/or direct effect with accurate case authority but treats "clearly...most important" as self-evidently true, with no real critical qualification.
Third/Fail (0–49%)	No accurate case authority for primacy or direct effect, confuses the two doctrines, or does not engage with "clearly" or "most important" as the specific claims being tested.

Case citations: *Costa v ENEL* Case 6/64 [1964] ECR 585; *Internationale Handelsgesellschaft mbH v Einfuhr- und Vorratsstelle für Getreide und Futtermittel* Case 11/70 [1970] ECR 1125; *Van Gend en Loos v Nederlandse Administratie der Belastingen* Case 26/62 [1963] ECR 1; *Crotty v An Taoiseach* [1987] IR 713; *Donoghue v Stevenson* [1932] AC 562.

Question B3

70% if selected

QUESTION AS SET

Compare and contrast the different mechanisms for dispute resolution available to a business person operating within the Irish legal system.

HEADLINE POSITION

A business person in Ireland has four broad mechanisms available — negotiation, mediation, arbitration, and litigation — each trading finality, cost, confidentiality, and relationship-preservation against each other in a different combination. None is categorically best; the right choice turns on the value of the dispute, whether a binding and enforceable outcome is needed, whether confidentiality matters, and whether the business needs to preserve an ongoing commercial relationship with the other party.

FULL MODEL ANSWER

1. Negotiation

Negotiated settlement, conducted directly between the parties without any third-party involvement, is the most commonly used mechanism in practice and the one requiring the least formal structure: the parties retain full control over both the process and the outcome, it is entirely private, and it is the fastest and cheapest route to resolution where both sides are willing to engage constructively. Its limitation is equally clear: it has no mechanism to compel the other party to the table or to compel disclosure of relevant information, and it produces no result at all where one side refuses to negotiate in good faith or where there is a significant imbalance of bargaining power between the businesses involved.

2. Mediation

Mediation introduces a neutral third party who facilitates a negotiated resolution without the power to impose an outcome on either side. The Mediation Act 2017, in force since 1 January 2018, gives this a statutory foundation for civil disputes generally: section 14 requires practising solicitors to advise clients to consider mediation, and to provide information about mediation services, before issuing court proceedings. Section 3 excludes certain categories from the Act's scope, notably disputes already the subject of an arbitration agreement under the Arbitration Act 2010. For a business person, mediation's central advantage is its capacity to preserve a commercial relationship worth continuing — a long-standing supplier or customer relationship, or a joint venture — through a confidential, comparatively inexpensive process that can produce creative, commercially tailored outcomes (a revised payment schedule, an amended contract term) that a court has no power to order. Its limitation mirrors negotiation's: the process is not binding unless and until the parties reduce the outcome to a settlement agreement, so a counterparty acting in bad faith can use it simply to delay resolution.

3. Arbitration

Arbitration is a private, consensual process, typically agreed in advance via an arbitration clause in a commercial contract, in which the parties submit their dispute to one or more arbitrators whose award is final and binding. The Arbitration Act 2010 governs both domestic and international arbitrations conducted in Ireland, adopting the UNCITRAL Model Law on International Commercial Arbitration in its entirety and replacing the previous, split Arbitration Acts 1954–1998 regime. Section 9 designates the High Court as the relevant court under the Model Law for supervisory functions. For a business person, arbitration offers confidentiality (unlike litigation's open-court process), the ability to select an arbitrator with relevant industry or technical expertise, procedural flexibility, and — a decisive advantage for cross-border commercial disputes — much more reliable international enforceability of the resulting award under the New York Convention 1958 than a foreign court judgment typically achieves. Its principal disadvantages are cost (the arbitrator's fees are borne by the parties, and complex arbitrations can rival or exceed litigation costs) and very limited grounds for appeal: under the Model Law, an award can be set aside only on narrow procedural grounds, not because the arbitrator reached the wrong result on the substantive law, which delivers finality at the cost of correctability.

4. Litigation

Litigation before the ordinary courts — the Circuit Court for claims up to €75,000, or the High Court (including its Commercial Court list for higher-value commercial disputes) for larger or more complex matters — is the default where no arbitration agreement exists and the parties cannot or will not settle. It applies binding legal rules through a public process with genuine appeal rights (Circuit Court to High Court; High Court to the Court of Appeal, and in defined circumstances to the Supreme Court), meaning a wrongly decided judgment is correctable in a way a final arbitral award is not. Courts also have coercive powers — discovery, compellability of witnesses, contempt powers — that neither mediation nor arbitration possess to the same automatic extent, and, critically, only the courts can grant urgent interim relief: an interlocutory injunction, tested under the framework in *Campus Oil Ltd v Minister for Industry and Energy (No 2)* [1983] IR 88 (a fair question to be tried, the adequacy of damages, and the balance of convenience), is the only mechanism capable of delivering an immediately binding order to prevent imminent, irreversible commercial harm. Litigation's disadvantages are the mirror image of mediation's and arbitration's advantages: proceedings and judgments are public, the process is comparatively slow and expensive, and it is structurally adversarial in a way that tends to permanently damage an ongoing commercial relationship between the parties.

5. Comparing and contrasting: what actually drives the choice

The comparison is most useful when organised around what a business person is actually trying to protect in a given dispute, rather than treating the four mechanisms as an unranked list. Where the priority is preserving an ongoing commercial relationship and controlling cost, negotiation and mediation are clearly preferable, and the Mediation Act 2017's mandatory pre-litigation advice requirement reflects a deliberate legislative preference for trying these routes first. Where the priority is a binding, confidential, and internationally enforceable outcome — particularly in cross-border commercial contracts — arbitration is generally the strongest choice, provided an arbitration agreement is in place or the other party will agree to one after the dispute arises. Where the priority is urgent interim protection, a binding and appealable result, or establishing a legal precedent that will govern future disputes with other counterparties, litigation is not merely tolerable but often the only mechanism capable of delivering what the business actually needs, notwithstanding its cost and publicity.

A further point of contrast worth drawing out explicitly: negotiation and mediation are fundamentally *consensual* throughout — either party can walk away at any point without a binding result — while arbitration and litigation are fundamentally *adjudicative*, producing an outcome imposed on the parties whether or not either side agrees with it once the process has run its course. This consensual/ adjudicative distinction cuts across the confidentiality and cost differences discussed above and is often the clearest single lens for comparing the four mechanisms: a business person choosing a dispute resolution route is, at bottom, choosing between retaining control over the outcome (negotiation, mediation) and accepting a binding result determined by someone else (arbitration, litigation) in exchange for the certainty and enforceability that only a binding process delivers.

> **EXAMINER'S TIP**
>
> "Compare and contrast" wants explicit points of comparison across the mechanisms, not four separate descriptions read one after another. Organise at least part of your answer (as above, via the consensual/adjudicative distinction, or via a value/urgency/confidentiality framework) around a lens that applies to all four, rather than treating each mechanism in total isolation from the others.

6. Conclusion

A business person in Ireland has four genuinely different mechanisms available, each suited to a different kind of dispute: negotiation and mediation for disputes where preserving the relationship and controlling cost matter most, arbitration for disputes needing a binding, confidential, and internationally enforceable outcome, and litigation for disputes needing urgent interim relief, an appealable result, or a binding legal precedent. The clearest way to compare and contrast them is along the consensual/adjudicative divide: negotiation and mediation let the parties retain control of the outcome at the cost of a binding result, while arbitration and litigation deliver a binding result at the cost of that control. No single mechanism is best for business disputes in general — the right choice always depends on what the specific dispute, and the ongoing relationship between the parties, actually requires.

Mark Allocation — Question B3 (out of 100% of the question)

Component	Weight
Negotiation — correctly explains advantages and limitations	**12%**
Mediation — correctly references the Mediation Act 2017 and explains advantages/limitations	**18%**
Arbitration — correctly references the Arbitration Act 2010/UNCITRAL Model Law and explains advantages/limitations, including enforceability	**20%**
Litigation — correctly describes the court structure/process, including *Campus Oil* on interim relief, and explains advantages/limitations	**20%**
Comparative framework — a genuine cross-cutting lens (e.g. consensual vs adjudicative, or value/urgency/confidentiality) connecting all four mechanisms	**20%**
Conclusion — a specific, reasoned synthesis rather than a repeated summary	**10%**
Total	**100%**

Mark Bands

Band	What must be present
First Class (70%+)	Accurately explains all four mechanisms with correct legislative and case authority (Mediation Act 2017, Arbitration Act 2010, *Campus Oil*) AND builds a genuine cross-cutting comparative framework connecting them, not a sequential list AND reaches a specific, reasoned conclusion.
2.1 (60–69%)	Accurately explains at least three of the four mechanisms with correct authority AND attempts a comparison, but the cross-cutting framework is thin or the conclusion is generic.
2.2 (50–59%)	Describes the four mechanisms in sequence with broadly accurate content, but with limited or no genuine comparison across them.
Third/Fail (0–49%)	Omits one or more mechanisms entirely, contains significant factual inaccuracy, or provides no comparative analysis at all.

Case citations: *Campus Oil Ltd v Minister for Industry and Energy (No 2)* [1983] IR 88.
Legislative references: Mediation Act 2017, ss.3, 14; Arbitration Act 2010, s.9; UNCITRAL Model Law on International Commercial Arbitration (1985, as amended 2006); New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards 1958.